

[About EDS](#)[About us](#)[Our board](#)[What we do](#)[Policy](#)[Litigation](#)[Events](#)[Areas of work](#)[Publications](#)[Bookstore](#)[Documents](#)[Get involved](#)[Support EDS](#)[Donate](#)[Young lawyer
fund](#)[Students](#)**Support
EDS****Environmental
Defence
Society**

[< All media statements](#)

Good to see legislation replacing the RMA, but improvements needed to protect the environment

15 November 2022

EDS has welcomed the introduction of two significant bills into the House to replace the Resource Management Act (RMA): the Natural and Built Environment Bill (NBE) and the Spatial Planning Bill (SPB).

These have been long in the making, and a result of a large and impressive collective effort in government. However, EDS considers that great care needs to be taken with final drafting, to ensure that the policy intent of the legislation is realised.

"These bills are intended to represent a generational change in how we manage our natural and built environments in Aotearoa New Zealand," said Gary Taylor, EDS CEO.

"EDS and business partners established some time ago that the RMA was not working for the environment or for the economy. It no longer reflects the values that we hold as a society and has become cumbersome, complex and costly. Change is certainly needed. We are pleased

that our efforts over the years, in partnership with business entities, to transform the system is coming to fruition,” said Mr Taylor.

“The bills appear largely to follow the recommendations of the independent Randerson Panel, which to a large extent reflected EDS’s own multi-year policy work on resource management reform,” said Dr Greg Severinsen, EDS Senior Policy Advisor.

“There is much in there that is positive. There is recognition of environmental limits and targets, a new purpose statement and more mandatory and integrated national direction through a National Planning Framework. In particular, limits *must* be set for air, freshwater, coastal water and indigenous biodiversity. There are stronger provisions to control existing uses of land which are harmful to the natural environment or need to adapt to climate change.

“Unlike the RMA, we now see high level principles on how resources are to be allocated (based on sustainability, efficiency and equity), although how that intersects with a new requirement to ‘give effect to’ the principles of te Tiriti o Waitangi remains to be seen.

“Complexity and cost should be reduced by cutting down around 112 plans in the current system to 15. They will be more integrated and directive, which will leave less to the consenting process and better manage cumulative impacts.

“A new layer of statutory spatial planning under the Spatial Planning Act should better align plans under the Natural and Built Environment Act with other frameworks such as those providing infrastructure.

“That said, we think that changes are still needed through the parliamentary process to strengthen environmental protections in the bills. For example:

- The new concept of ‘te oraanga o te taiao’ in the NBEB’s purpose, and its relationship with other aspects of the purpose, remain vague and open to interpretation.
- Although ‘minimum targets’ for improvement beyond the status quo are required, this relies on the Minister being satisfied that the status quo is an ‘unacceptable degrading’ of the natural environment.
- The list of environmental ‘outcomes’ that decision-makers are directed to achieve has no hierarchy or clear weighting, meaning a significant amount of discretion exists to pick and choose development outcomes over core environmental protections.
- Environmental limits are to be established within ‘management units’, but how those are to be identified for different domains remains uncertain.
- The matters for which limits have to be set remain reasonably high level (eg air, coastal water, freshwater etc), rather than necessarily needing to address more specific pressures (eg sedimentation, nutrients).
- Potentially broad exceptions to environmental limits are contemplated, including (albeit with some safeguards) where an activity provides ‘public benefits that justify the loss of ecological integrity.’

“These are the most important environmental law reforms since 1991, and it essential that we get them right. They come at a time where the environment is under immense pressure and where, as a society, we need to rethink our relationship with nature. There needs to be cross-

party support for the legislation, with environmental wellbeing too important to be used for political point scoring.

“We will be going through the bills with a fine-tooth comb and making a comprehensive submission. We encourage everyone to engage with the select committee process. Through all of this it’s crucial also to remember implementation, and how decision-makers are to be supported and guided as we go through a transition to the new system,” concluded Dr Severinsen.

+64 9 302 2972

manager@eds.org.nz



Donate to EDS

Become a Supporter

Newsletter signup

© Copyright 2026 Environmental Defence Society • T&Cs